

D.K. Basu v. State of West Bengal (1997)

Arrest Procedures, Custodial Violence & Human Rights Protections

Advocate Manisha Gandhi | Co-Founder, Law Glimpse - Academic Study Series

Citation: (1997) 1 SCC 416 | Bench: 2 Judges

Core Ratio: Laid down 11 mandatory guidelines to prevent custodial torture and ensure transparency during arrest and detention under Articles 21 and 22.

Key Takeaways for Students:

- Mandatory memo of arrest with date, time, and witness attestation.
- Obligation to inform next of kin within 8 to 12 hours of arrest.
- Mandated regular medical examination of arrestee every 48 hours.
- Now codified into procedural statutory safeguards in Bharatiya Nagarik Suraksha Sanhita.